

Dharmendra Singh v. State of U.P.

Allahabad High Court · Division Bench · 10 November 2021 · WRIT - C No. 28444 of 2021 · **Writ dismissed; relegated to statutory Supply Code appeal**

HEADNOTE

A writ challenging recovery of Rs. 3,43,084 pursuant to a final assessment of electricity dues was dismissed. Against such an assessment the consumer has a statutory appeal under the Electricity Supply Code, 2005. Article 226 interference was refused because of that alternate remedy and because disputed questions of fact could not be examined at the writ stage.

FACTUAL SUMMARY

Dharmendra Singh approached the Allahabad High Court under Article 226 challenging recovery of electricity dues quantified at Rs. 3,43,084 pursuant to a final assessment made against him. Counsel for the petitioner, the Standing Counsel for the State, and counsel for the respondent-corporation were heard. The petition attacked the recovery founded on that assessment rather than any independent demand. The Court was asked to interfere with the assessment-based recovery at the writ stage.

HOLDING-UNITS

INTERPLAY · UP-2005::6.8

appeal against final assessment; writ maintainability

HOLDING

A writ under Article 226 challenging recovery pursuant to a final assessment of electricity dues is not maintainable where a statutory appeal under the Electricity Supply Code, 2005 is available; disputed questions of fact arising from the assessment cannot be gone into at the writ stage. ¶ 3-5

FLAG Court referred only to an appeal under the Electricity Supply Code, 2005, without numbering the clause; 6.8 is the Code appeal against final assessment.

PRINCIPLE TAGS

alternate-remedy-supply-code-appeal Writ against recovery on a final assessment of electricity dues dismissed because an appeal under the Electricity Supply Code, 2005 was available and disputed facts could not be examined under Article 226. ¶ 3-5

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE FINAL ASSESSMENT AND THE QUANTUM OF RS. 3,43,084

Merits of the assessment and recovery were not examined; the petition was dismissed for alternate statutory remedy and disputed facts. ¶ 3-5